NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- IV)

C.A.(CAA)-129/ND/2021

Sections 230 – 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF COMPOSITE SCHEME OF ARRANGEMENT:

BETWEEN

MICROTEK INTERNATIONAL PRIVATE LIMITED

... Demerged Company / Transferee Company /Applicant Company-1

AND

HPP TECHNOLOGIES PRIVATE LIMITED

... Resulting Company /Applicant Company-2

AND

MICROTEK INFOSOFT PRIVATE LIMITED

... Transferor Company-1 / Applicant Company-3

AND

MICROTEK BALAJI POWERTRONICS PRIVATE LIMITED

... Transferor Company-2 / Applicant Company-4

AND

MICROTEK SHIVALIK INDUSTRIES PRIVATE LIMITED

... Transferor Company-3 / Applicant Company-5

AND

S/d

MICROTEK HIMACHAL POWER PRODUCTS PRIVATE LIMITED

... Transferor Company-4 / Applicant Company 6

AND

MICROTEK UNIVERSAL POWER PRODUCTS PRIVATE LIMITED

... Transferor Company-5/ Applicant Company-7

AND

MODULUS PREFAB SOLUTIONS PRIVATE LIMITED

... Transferor Company-6 /Applicant Company-8

AND

KAMLA FABRICATORS PRIVATE LIMITED

... Transferor Company-7/ Applicant Company-9

AND

MICROTEK TANGENT POWER PRIVATE LIMITED

... Transferor Company-8 / Applicant Company-10

CORAM:

SH. DHARMINDER SINGH, HON'BLE MEMBER, (J)

MS. SUMITA PURKAYASTHA, HON'BLE MEMBER, (T)

Order Pronounced on 31.05.2022

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ORDER

PER: SUMITA PURKAYASTHA, MEMBER (TECHNICAL)

1. Under consideration is the Joint Application No. C.A.(CAA)129/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the composite Scheme of Arrangement (hereinafter referred to as the "Scheme") proposed by the Applicant Companies. The prayer made seeking dispensation/directions with respect to the meetings of shareholders and creditors of the respective Applicant Companies to consider the proposed Scheme.

2. M/s Microtek International Private Limited (hereinafter referred as the **"Demerged Company / Transferee Company /Applicant Company-1"**) having CIN no. U74899DL1989PTC036999 is a private limited company incorporated under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-1 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

3. M/s HPP Technologies Private Limited (hereinafter referred as the **"Resulting Company / Applicant Company-2")** having CIN no. U72900DL2021PTC386479 is a private limited company incorporated

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under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-2 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

4. M/s Microtek Infosoft Private Limited (hereinafter referred as the **"Applicant Company-3 / Transferor Company-1"**) having CIN no. U74899DL2000PTC105541 is a private limited company incorporated under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-3 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

5. M/s Microtek Balaji Powertronics Private Limited (hereinafter referred as the **"Transferor Company-2 / Applicant Company-4"**) having CIN no. U31900DL2021PTC385558 is a private limited company incorporated under the Companies Act, 1956. The registered office of the Applicant Company-4 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

6. M/s Microtek Shivalik Industries Private Limited (hereinafter referred as the **"Transferor Company-3 / Applicant Company-5")** having CIN no. U31109DL2021PTC385521 is a private limited company incorporated under the erstwhile Companies Act, 1956. The registered office of the

Applicant Company-5 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

7. M/s Microtek Himachal Power Products Private Limited (hereinafter referred as the **"Transferor Company-4 / Applicant Company-6")** having CIN no. U31909DL2021PTC385468 is a private limited company incorporated under the Companies Act, 2013. The registered office of the Applicant Company-6 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

8. M/s Microtek Universal Power Products Private Limited (hereinafter referred as the **"Transferor Company -5 / Applicant Company-7")** having CIN no. U31909DL2021PTC385529 is a private limited company incorporated under the Companies Act, 2013. The registered office of the Applicant Company-7 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

9. M/s Modulus Prefab Solutions Private Limited (hereinafter referred as the **"Transferor Company-6 / Applicant Company-8")** having CIN no. U27109DL2021PTC385528 is a private limited company incorporated under the Companies Act, 2013. The registered office of the Applicant Company-8 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

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10. M/s Kamla Fabricators Private Limited (hereinafter referred as the **"Transferor Company-7 / Applicant Company-9")** having CIN no. U27109DL2021PTC385528 is a private limited company incorporated under the Companies Act, 2013. The registered office of the Applicant Company-9 is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

11. M/s Microtek Tangent Power Private Limited (hereinafter referred as the **"Transferor Company-8 / Applicant Company-10")** having CIN no. U27109DL2021PTC385528 is a private limited company incorporated under the Companies Act, 1956. The registered office of the Transferor company is situated at H-56, Udyog Nagar, Main Rohtak Road, New Delhi-110041.

12. It is submitted by the Applicant Companies that the registered office of all the Applicant Companies is under the domain of Registrar of Companies, Delhi and within the territorial jurisdiction of this Tribunal.

13. It is submitted by the Applicant Companies that the Board of Directors of all the Applicant Companies in their respective board meetings held on 19.10.2021 have unanimously approved the proposed Composite Scheme of Arrangement. The appointed date as specified in the scheme is 01.10.2021 or such other date as may be approved by the Hon'ble Tribunal and agreed to by the Board of Transferor Companies, Demerged

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Company/ Transferee Company and the Resulting Company. Copies of the respective board resolutions dated19.10.202 passed in their respective board meetings have been placed on record.

14. It is submitted by the Applicant Companies that the following objectives are sought to be achieved by way of the proposed Composite Scheme of Arrangement:

i. Rationale for demerger of the Demerged Undertaking of the Demerged Company into Resulting Company:

a. *The Demerged Company is, directly and through its subsidiaries, engaged mainly in the business of sale and marketing of (i) power products, UPS, invertors, voltage stabilizers, circuit protection devices, wires and cables, e-chargers, computer peripherals & parts, electric and electronic goods; and (in) health care products, inter-alia, thermometers, oximeters, oxygen concentrators, etc. The Demerged Company is also carrying on the business of leasing / letting out/ renting of IT parks, buildings and construction and development thereof etc. which does not pertain to main business of the Demerged Company.*

b. *The nature of risk, competition, challenges, opportunities and business methods for Lease Rentals Business are separate and distinct from the Main Business being carried on by the Demerged Company. The Lease Rentals Business and the Main Business of the Demerged Company are capable of attracting a different set of investors, strategic partners lenders and other stakeholders. The Manner in which the Lease Rentals Business and Main Business of the Demerged Company are required to be organized, managed and run are also different. In order to lend greater/ enhanced focus to the operation of the said businesses, it is proposed to re-organize and segregate the Lease Rentals Business by way of demerger and transfer the same to the Resulting Company.*

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c. *The segregation would enable greater/ enhanced focus of the management on both the Lease Rentals Business and the Main Business of the Demerged Company thereby facilitating the management to efficiently exploit opportunities for each of the said businesses.*
d. *Segregation will also result in creation of efficiencies and optimal utilization of the available resources and optimization of capital and operational expenditure.*
e. *The proposed segregation will also enhance value for shareholders as there would be absolute clarity to investors in the business profile of the Demerged Company and Resulting Company.*

ii. Rationale for Amalgamation of Transferor Companies with the Transferee Company:

a. *The Transferor Companies and the Transferee Company are promoted by common promoter families. Entire Shareholding of Transferee Company and al Transferor Companies-1 to 8 is controlled, owned and held by members of common promoter families or their limited liability partnerships. Further members of common promoter families are directors of Transferee Company and all Transferor Companies-1 to 8. The amalgamation of the Transferor Companies with the Transferee Company shall facilitate consolidation of all the businesses and undertakings whereby transferee Company will have combined capabilities from manufacturing components to finished products and established sales and marketing network and it will emerge as an integrated player in the industry. The amalgamation of Transferor Companies and Transferee Company will also lead to unified control and effective management.*
b. *The amalgamation will lead to greater efficiency in overall combined business including economies of scale, cost reduction, efficiency of operations, optimization of support functions, better cash flow management and unfettered access to the cash flow generated by the combined business which can be deployed more efficiently for the development of entity and future growth opportunities.*
c. *The amalgamation will provide for more productive and optimum utilization of various resources by pooling of managerial, technical and financial resources which will fuel growth of the Transferee Company.*

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d. *The amalgamation will result in simplification of the corporate structure and reduction in the duplication of administrative, legal and regulatory compliances resulting in economies in administrative and managerial costs.*

e. *The Transferee Company will have a better leveraging capability due to its enlarged networth base improved profitability and increased business capability, thus improving its ability to effectively exploit the growing market potential and enhanced business prospects. The business of Transferor Companies can be conveniently amalgamated with the businesses of the Transferee Company.*

15. It is submitted that the Applicant Companies through their authorised signatories have filed their respective Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under the Companies Act 2013.

16. That the Applicant Companies have also placed on record the Certificate issued by the respective Statutory Auditors of the Applicant Companies declaring that the Accounting Standards of the respective applicant companies are in conformity with the provision of Section 133 of the Companies Act 2013.

17. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs) interalia delineating their object clause. The Applicant Companies have filed their latest Audited Financial Statements for the financial year ended

31.03.2021. Further, the Provisional Financial Statements for the period ending 21.09.2021 have been placed on record by the Applicant Companies.

18. That the position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf:

Companies	No. of equity share holders	Consent given	No. of secured creditors	Consent given	No. of Unsecured creditors	Consent given
Demerged Company	10	100%	1	100%	281	(13 in number)95.70%
Resulting company	2	100%	NIL	NA	NIL	NA
Transferor company No.-1/ Applicant Company No. 3	7	100%	NIL	NA	61	(9 in number)90.83%
Transferor company No.-2/ Applicant Company No. 4	7	100%	1	100%	191	(19 in number)90.87%
Transferor company No.-3/ Applicant	10	100%	1	100%	114	15 in number) 96.47%

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Company No. 5						
Transferor company No.-4/ Applicant Company No. 6	9	100%	1	100%	73	12 in number) 98.84%
Transferor company No.-5/ Applicant Company No. 7	9	100%	1	100%	109	15 in number) 98.16%
Transferor company No.-6/ Applicant Company No. 8	7	100%	NIL	NA	75	16 in number) 93.55%
Transferor company No.-7/ Applicant Company No. 9	6	100%	NIL	NA	39	16 in number) 95.84%
Transferor company No.-8/ Applicant Company No. 10	8	100%	NIL	NA	79	17 in number) 96.56%

19. With respect to the Applicant Company-1, Applicant Company-1 submit that:

i. There are 10 (Ten) Equity Shareholders in the Applicant Company-1, and all the Equity Shareholders of the Applicant Company-1 i.e. 100%

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equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There is only 1 (One) Secured Creditor in the Applicant Company-1 having outstanding amount of Rs. 1,02,91,66,631/- as per the certificate from the Charted Accountant certifying the list of Secured Creditor of the Applicant Company-1 and the sole secured creditor of the Applicant Company-1 i.e., 100% in value has given its consent by way of consent affidavit which is annexed to the captioned joint Company Scheme Application.

iii. There are 281 (Two Hundred Eighty-One) Unsecured Creditors in the Applicant Company-1 having total outstanding amount of Rs.3,40,70,73,171/- as per the certificate from the Charted Accountant certifying the list of unsecured creditor of the Applicant Company-1 and out of the total unsecured creditors, 13 (Thirteen) unsecured creditors of the Applicant Company-1 holding aggregate outstanding amount of Rs.3,26,06,95,866/- i.e. 95.70% in value have given their consent by way of consent affidavits which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, secured creditors and unsecured creditors, holding of the meeting of the equity shareholders,

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secured and unsecured creditors of the Applicant Company-1 may be dispended with.

20. With respect to the Applicant Company-2, Applicant Company-2 submit that:

i. There are 2 (Two) Equity Shareholders in the Applicant Company-2, and all the Equity Shareholders of the Applicant Company-2 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor and Nil Unsecured Creditor in the Applicant Company-2 as per the certificate from the Charted Accountant certifying the list of Secured Creditor and Unsecured Creditor respectively which are annexed to the captioned joint Company Scheme Application.

iii. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, holding of the meeting of the equity shareholders may be dispended with. Since the Applicant Company-2 has nil secured creditor and unsecured creditor, the requirement of convening and holding the meeting of secured creditor and unsecured creditor does not arise.

21. With respect to the Applicant Company-3, Applicant Company-3 submit that:

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i. There are 7 (Seven) Equity Shareholders of the Applicant Company-3, and all the Equity Shareholders of the Applicant Company-3 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-3 as per the certificate from the Charted Accountant certifying the list of Secured Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 61 (Sixty One) Unsecured Creditors in the Applicant Company-3 having total outstanding amount of Rs.1,32,84,629.36/- as per the certificate from the Charted Accountant certifying the list of unsecured creditor of the Applicant Company-3 and out of the total unsecured creditors, 09 (Nine) unsecured creditors of the Applicant Company-3 holding aggregate outstanding amount of Rs.1,20,66,345.40/-1 i.e. 90.83% in value have given their consent by way of consent affidavits which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors, holding of the meeting of the equity shareholders and the unsecured creditors may be dispended with. Since the Applicant

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Company-3 has no secured creditors, the requirement of convening and holding the meeting of secured creditor does not arise.

22. With respect to the Applicant Company-4, Applicant Company-4 submit that:

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-4, and all the Equity Shareholders of the Applicant Company-4 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There is only 1 (One) Secured Creditor in the Applicant Company-4 having outstanding amount of Rs.49,10,69,909.45/- as per the certificate from the Charted Accountant certifying the list of Secured Creditor of the Applicant Company-4 and the sole secured creditor of the Applicant Company-4 i.e., 100% in value has given its consent by way of consent affidavit which is annexed to the captioned joint Company Scheme Application.

iii. There are 191 (One Hundred Ninety-One) Unsecured Creditors in the Applicant Company-4 having total outstanding amount of Rs.1,20,59,37,155/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-4 and out of the total unsecured creditors, 19 (Nineteen) unsecured creditors of the Applicant Company-4 holding aggregate outstanding amount of Rs. 1,09,57,99,957.31/- i.e., 90.87% in value

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have given their consent by way of consent affidavits which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, secured creditors and unsecured creditors, holding of the meeting of the equity shareholders, secured and unsecured creditors of the Applicant Company-4 may be dispended with.

23. With respect to the Applicant Company-5, Applicant Company-5 submit that:

i. There are 10 (Ten) Equity Shareholders in the Applicant Company-5, and all the equity shareholders of the Applicant Company-5 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There is only 1 (One) Secured Creditor in the Applicant Company-5 having outstanding amount of Rs.42.71,41,381.15 /- as per the certificate from the Charted Accountant certifying the list of secured creditors of the Applicant Company-5 and the sole secured creditor of the Applicant Company-5 i.e., 100% in value has given its consent by way of consent affidavit which is annexed to the captioned joint Company Scheme Application.

iii. There are 114 (One Hundred Fourteen) Unsecured Creditors in the Applicant Company-5 having total outstanding amount of

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Rs.89,79,31,004.67/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-5 and out of the total unsecured creditors, 15 (Fifteen) unsecured creditors of the Applicant Company-5 holding aggregate outstanding amount of Rs. 86,62,03,651.94/- i.e., 96.47% in value have given their consent by way of consent affidavits which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, secured creditors and unsecured creditors holding of the meeting of the equity shareholders, secured creditors and unsecured creditors of the Applicant Company-5 may be dispended with.

24. With respect to the Applicant Company-6, Applicant Company-6 submit that:

i. There are 09 (Nine) Equity Shareholders in the Applicant Company-6, and all the equity shareholders of the Applicant Company-6 i.e., 100% equity shareholders have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There is only 1 (One) Secured Creditor in the Applicant Company-6 having outstanding amount of Rs.43,38,71,3213.85/- as per the certificate from the Charted Accountant certifying the list of secured

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creditors of the Applicant Company-6 and the sole secured creditor of the Applicant Company-6 i.e., 100% in value has given its written consent to the proposed composite scheme of arrangement by way of consent affidavit which is annexed to the captioned joint Company Scheme Application.

iii. There are 73 (Seventy-Three) Unsecured Creditors in the Applicant Company-6 having total outstanding amount of Rs.1,17,28,99,739.4/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-6 and out of the total unsecured creditors, 12 (Twelve) unsecured creditors of the Applicant Company-6 holding aggregate outstanding amount of Rs. 1,15,93,25,661.35/- i.e., 98.84% in value have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, secured creditors and unsecured creditors of the Applicant Company-6, holding of the meeting of the equity shareholders, secured creditors and unsecured creditors of the Applicant Company-6 may be dispended with.

25. With respect to the Applicant Company-7, Applicant Company-7 submit that:

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i. There are 09 (Nine) Equity Shareholders in the Applicant Company-7, and all the equity shareholders of the Applicant Company-7 i.e., 100% equity shareholders have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There is only 1 (One) Secured Creditor in the Applicant Company-7 having outstanding amount of Rs.48,54,11,461.04/- as per the certificate from the Charted Accountant certifying the list of secured creditors of the Applicant Company-7 and the sole secured creditor of the Applicant Company-7 i.e., 100% in value has given its written consent to the proposed composite scheme of arrangement by way of consent affidavit which is annexed to the captioned joint Company Scheme Application.

iii. There are 109 (One Hundred Nine) Unsecured Creditors in the Applicant Company-7 having total outstanding amount of Rs.71,81,80,383.09/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-7 and out of the total unsecured creditors, 15 (Fifteen) unsecured creditors of the Applicant Company-7 holding aggregate outstanding amount of Rs. 70,49,55,677.46 /- i.e., 98.16% in value have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

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iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, secured creditors and unsecured creditors of the Applicant Company-7, holding of the meeting of the equity shareholders, secured creditors and unsecured creditors of the Applicant Company-7 may be dispended with.

26. With respect to the Applicant Company-8, Applicant Company-8 submit that:

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-8, and all the equity shareholders of the Applicant Company-8 i.e., 100% equity shareholders have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-8 as per the certificate from the Charted Accountant certifying the list of Secured Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 75 (Seventy-Five) Unsecured Creditors in the Applicant Company-8 having total outstanding amount of Rs.18,56,12,562.51/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-8 and out of the total unsecured creditors, 16 (Sixteen) unsecured creditors of the Applicant

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Company-8 holding aggregate outstanding amount of Rs. 17,36,41,609.44/- i.e., 93.55% in value have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors of the Applicant Company-8, holding of the meeting of the equity shareholders and the unsecured creditors of the Applicant Company-8 may be dispended with. Since the Applicant Company-8 has no secured creditors, the requirement of convening and holding the meeting of secured creditor of the Applicant Company-8 does not arise.

27. With respect to the Applicant Company-9, Applicant Company-9 submit that:

i. There are 06 (Six) Equity Shareholders in the Applicant Company-9, and all the equity shareholders of the Applicant Company-9 i.e., 100% equity shareholders have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-9 as per the certificate from the Charted Accountant certifying the list of Secured

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Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 39 (Thirty-Nine) Unsecured Creditors in the Applicant Company-9 having total outstanding amount of Rs.11,68,52,140/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-9 and out of the total unsecured creditors, 16 (Sixteen) unsecured creditors of the Applicant Company-9 holding aggregate outstanding amount of Rs. 11,19,88,073/- i.e., 95.84% in value have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors of the Applicant Company-9, holding of the meeting of the equity shareholders and the unsecured creditors of the Applicant Company-9 may be dispended with. Since the Applicant Company-9 has no secured creditors, the requirement of convening and holding the meeting of secured creditor of the Applicant Company-9 does not arise.

28. With respect to the Applicant Company-10, Applicant Company-10 submit that:

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i. There are 08 (Eight) Equity Shareholders in the Applicant Company-10, and all the equity shareholders of the Applicant Company-10 i.e., 100% equity shareholders have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-10 as per the certificate from the Charted Accountant certifying the list of Secured Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 79 (Seventy-Nine) Unsecured Creditors in the Applicant Company-10 having total outstanding amount of Rs.17,99,63,169.64/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-10 and out of the total unsecured creditors, 17 (Seventeen) unsecured creditors of the Applicant Company-10 holding aggregate outstanding amount of Rs. 17,37,66,648.64/- i.e., 96.56% in value have given their written consent to the proposed composite scheme of arrangement by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors of the Applicant Company-10, holding of the meeting of the

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equity shareholders and the unsecured creditors of the Applicant Company-10 may be dispended with. Since the Applicant Company-10 has no secured creditors, the requirement of convening and holding the meeting of secured creditor of the Applicant Company-10 does not arise.

29. Taking into consideration the submissions and the documents placed on record by the Applicant Companies, we propose to issue the following directions with respect to convening/holding or dispensing with the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the respective Applicant Companies as well as issue of notices to the statutory authorities including by way of paper publication as follow:

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A. <u>In relation to Applicant Company-1:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 10 (Ten) equity shareholders of the Applicant Company-1, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-1 is hereby dispensed with.

b. With respect to the Secured Creditors:

In view of the consent Affidavit received from the sole secured creditor of the Applicant Company-1 i.e., 100% in value, convening

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the meeting of the Secured Creditors of the Applicant Company-1 is hereby dispensed with.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 13 (Thirteen) unsecured creditors of the Applicant Company-1 holding aggregate outstanding amount of Rs.3,26,06,95,866/- i.e., 95.70% in value, convening the meeting of the Unsecured Creditors of the Applicant Company-1 is hereby dispensed with.

B. <u>In relation to Applicant Company-1:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 02 (Two) equity shareholders of the Applicant Company-2, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-2 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-2 does not arise.

c. With respect to the Unsecured Creditors:

There are no unsecured creditors, hence the requirement of convening the meeting of the unsecured creditors of the Applicant Company-2 does not arise.

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C. In relation to Applicant Company-3:

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (Seven) equity shareholders of the Applicant Company-3, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-3 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-2 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 09 (Nine) unsecured creditors of the Applicant Company-3 holding aggregate outstanding amount of Rs.1,20,66,345.41/- i.e., 90.83% in value, convening the meeting of the unsecured creditors of the Applicant Company-3 is hereby dispensed with.

D. In relation to Applicant Company-4:

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (Seven) equity shareholders of the Applicant Company-4, holding 100%

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voting shares, convening the meeting of the equity shareholders of the Applicant Company-4 is hereby dispensed with.

b. With respect to the Secured Creditors:

In view of the consent Affidavit received from the sole secured creditor of the Applicant Company-4 i.e., 100% in value, convening the meeting of the secured creditors of the Applicant Company-4 is hereby dispensed with.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 19 (Nineteen) unsecured creditors of the Applicant Company-4 holding aggregate outstanding amount of Rs.1,09,57,99,957.31/- i.e., 90.87% in value, convening the meeting of the unsecured creditors of the Applicant Company-4 is hereby dispensed with.

E. <u>In relation to Applicant Company-5:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 10 (ten) equity shareholders of the Applicant Company-5, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-5 is hereby dispensed with.

b. With respect to the Secured Creditors:

In view of the consent Affidavit received from the sole secured creditor of the Applicant Company-5 i.e., 100% in value, convening

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the meeting of the secured creditors of the Applicant Company-5 is hereby dispensed with.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 15 (Fifteen) unsecured creditors of the Applicant Company-5 holding aggregate outstanding amount of Rs.86,62,03,651.94/- i.e., 96.47% in value, convening the meeting of the unsecured creditors of the Applicant Company-5 is hereby dispensed with.

F. <u>In relation to Applicant Company-6:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 09 (nine) equity shareholders of the Applicant Company-6, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-6 is hereby dispensed with.

b. With respect to the Secured Creditors:

In view of the consent Affidavit received from the sole secured creditor of the Applicant Company-6 i.e., 100% in value, convening the meeting of the secured creditors of the Applicant Company-6 is hereby dispensed with.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 12 (Twelve) unsecured creditors of the Applicant Company-6 holding aggregate outstanding

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amount of Rs.1,15,93,25,661.35/- i.e., 98.84% in value, convening the meeting of the unsecured creditors of the Applicant Company-6 is hereby dispensed with.

G. <u>In relation to Applicant Company-7:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 09 (nine) equity shareholders of the Applicant Company-7, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-7 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-7 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 15 (Fifteen) unsecured creditors of the Applicant Company-7 holding aggregate outstanding amount of Rs. 70,49,55,677.46/- i.e., 98.16% in value, convening the meeting of the unsecured creditors of the Applicant Company-7 is hereby dispensed with.

H. <u>In relation to Applicant Company-8:</u>

a. With respect to the Equity Shareholders:

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In view of the consent affidavits received from all the 07 (seven) equity shareholders of the Applicant Company-8, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-8 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-8 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 16 (Sixteen) unsecured creditors of the Applicant Company-8 holding aggregate outstanding amount of Rs. 17,36,41,609.44/- i.e., 93.55% in value, convening the meeting of the unsecured creditors of the Applicant Company-8 is hereby dispensed with.

I. <u>In relation to Applicant Company-9:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 06 (six) equity shareholders of the Applicant Company-9, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-9 is hereby dispensed with.

b. With respect to the Secured Creditors:

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There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-9 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 16 (Sixteen) unsecured creditors of the Applicant Company-9 holding aggregate outstanding amount of Rs. 11,19,88,073.32/- i.e., 95.84% in value, convening the meeting of the unsecured creditors of the Applicant Company-9 is hereby dispensed with.

J. <u>In relation to Applicant Company-10:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 08 (eight) equity shareholders of the Applicant Company-10, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-10 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-10 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 17 (Seventeen) unsecured creditors of the Applicant Company-10 holding aggregate

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outstanding amount of Rs. 17,37,66,648.64/- i.e., 96.56% in value, convening the meeting of the unsecured creditors of the Applicant Company-10 is hereby dispensed with.

K. The Applicant Companies shall serve the notices along with copy of required documents and disclosures required under the provisions of the Companies Act,2013 upon: (i) the Central Government through the office of the Regional Director (Northern Region), Ministry of Corporate Affairs, Delhi (ii) the Registrar of Companies, NCT of Delhi and Haryana (iii) concerned income tax authorities within whose jurisdiction the respective Applicant Companies assessment are made (iv) any sectoral regulator who may have bearing on the operation of the Applicant Companies, pursuant to section 230(5) of the Companies Act, 2013 read with rule 8 of the Companies (Compromises, Arrangements and Amalgamations Rules) 2016. Further the Applicant Company-3, Applicant Company-4, Applicant Company-5, Applicant Company-6, Applicant Company-7, Applicant Company-8, Applicant Company-9 and Applicant Company-10 are directed to serve the notices along with copy of required documents and disclosures required under the provisions of the Companies Act,2013 and rules made thereunder upon the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-11001 pursuant to section 230(5) of the Companies Act, 2013 read with rule 8 of the Companies (Compromises, Arrangements and Amalgamations Rules), 2016.

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30. All the aforesaid directions are to be complied with, strictly in accordance with the applicable law, including forms and formats contained in the Companies Act,2013 as well as in Companies (Compromises, Arrangements and Amalgamations Rules), 2016.

31. The Captioned Application C.A.(CAA)129/ND/2021 is allowed in aforesaid terms.

32. Let the copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)